

		for relief from default. [W.A. Rose Co. v. Mun.Ct. (FitzSimmons) (1959) 176 CA2d 67, 72.] Plaintiff to give notice.
107	Birchall vs. Orange County Sheriff Department 25-01505924	1. Motion for Judgment on the Pleadings Defendant COUNTY OF ORANGE, a public entity, erroneously sued and served herein as ORANGE COUNTY SHERIFF’S DEPARTMENT (the “County”), will and hereby does move the Court, pursuant to California Code of Civil Procedure Section 438 and this Court’s non statutory authority to hear motions for judgment on the pleadings, for an Order granting Defendant’s Motion for Judgment on the Pleadings without leave to amend and dismissing Plaintiff MARC BRUCE RONALD BIRCHALL’s Complaint. On 8/25/2025 Plaintiff initiated this lawsuit by filing a Complaint. On 4/30/2026 Defendant served Plaintiff via email with this Motion for Judgment on the Pleadings. Plaintiff is in pro per. Notably, all papers opposing a motion “shall be filed with the court and a copy served on each party at least nine court days” before the hearing. [Code Civ. Proc. § 1005(b).] A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired. Except as provided by CCP § 438, the rules governing demurrers apply. [Cloud v. Northrop Grumman Corp. (1998) 67 CA4th 995, 999.] The failure to oppose a demurrer may be construed as having abandoned the claims. [See Herzberg v. County of Plumas (2005) 133 Cal. App. 4th 1, 20 --“Plaintiffs did not oppose the County's demurrer to this portion of their seventh cause of action and have submitted no

		argument on the issue in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue”.] In addition, it is axiomatic the failure to challenge a contention in a brief results in the concession of that argument. [DuPont Merck Pharmaceutical Co. v. Sup. Ct. (2000) 78 Cal.App.4th 562, 566--“By failing to argue the contrary, plaintiffs concede this issue”; Westside Center Associates v. Safeway Stores 23, Inc. (1996) 42 Cal.App.4th 507, 529--“failure to address the threshold question ... effectively concedes that issue and renders its remaining arguments moot”; Glendale Redevelopment Agency v. Parks (1993) 18 Cal.App.4th 1409, 1424-- issue is impliedly conceded by failing to address it.] Here, no opposition to the Motion for Judgment on the Pleadings has been filed; and therefore, the Court deems the motion unopposed and construes the failure to oppose the Motion as an abandonment of Plaintiffs’ claims. While the Court notes Plaintiff is in Pro Per, Pro Pers must abide by the Civ. Pro. Code and Cal. Rules of Court: (See Gamet v. Blanchard (2001) 91 Cal.App.4th 1276, 1284 [“pro per litigants are not entitled to special exemptions from the California Rules of Court or Code of Civil Procedure”].) Moreover, the fact that plaintiff is in pro per does not afford him special treatment. [Nwosu v. Uba (2004) 122 Cal.App.4th 1229, 1246-1247.] Therefore, the unopposed Motion for Judgment on the Pleadings is GRANTED in its entirety with 20 days leave to amend. Defendant to give notice. 2. Case Management Conference
109	Riar vs. Volkswagen Group of America, Inc.	1. Motion for Attorney Fees As corrected by a Notice of Errata, Plaintiff, Keerat Riar (“Plaintiff”), moves for an order awarding